SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: W.P. (Crl.) No. 68 of 2008 (YEAR: 2014)

CORAM: P. SATHASIVAM, B.S. CHAUHAN, RANJANA P. DESAI, RANJAN GOGOI, S.A. BOBDE

Lalita Kumari
... Appellant(s) / Petitioner(s)
Versus
Government of Uttar Pradesh
... Respondent(s)

Acts Referred:	Code of Criminal Procedure, 1973
Sections:	Section 154 CrPC

JUDICIAL HEADNOTE & SUMMARY

Held that registration of an FIR under Section 154 CrPC is mandatory if the information discloses the commission of a cognizable offence, without room for preliminary inquiry except in narrow exceptions.

RATIO DECIDENDI

The Court held that: Held that registration of an FIR under Section 154 CrPC is mandatory if the information discloses the commission of a cognizable offence, without room for preliminary inquiry except in narrow exceptions. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Lalita Kumari v. Government of Uttar Pradesh (W.P. (Crl.) No. 68 of 2008) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Code of Criminal Procedure, 1973, particularly Section 154 CrPC. Held that registration of an FIR under Section 154 CrPC is mandatory if the information discloses the commission of a cognizable offence, without room for preliminary inquiry except in narrow exceptions.

OPERATIVE ORDER

ORDER: Decided